

## 25STCV06382 25STCV06382

County: los-angeles

Division: Civil Law and Motion

Department: 415

Hearing date: 2026-09-01

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Case Number: 25STCV06382 Hearing Date: September 1, 2026 Dept: 415

Tentative Ruling

Judge Rolf M. Treu, Department 415

HEARING

DATE: September 1,

2026 TRIAL

DATE: Not set.

CASE: Barrios, et al. v. Levon Dzhabrayan, et

al.

CASE

NO.: 25STCV06382

MOTION TO BE

RELIEVED AS COUNSEL

MOVING PARTY/PARTIES: Attorney Gerald L. Marcus

RESPONDING PARTY/PARTIES: None

PROOF OF SERVICE:

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Correct Address: Counsel represents

he confirmed the address by telephone.

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Served electronically on March 17,

2026 for a hearing date of September 1, 2026.

CASE HISTORY:

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March 6, 2025: Complaint filed.

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September 4, 2025: Entire action

dismissed.

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February 25, 2026: Motion to set

aside dismissal of Plaintiff's claims granted.

STATEMENT OF MATERIAL FACTS AND/OR

PROCEEDINGS:

Plaintiff Diana De La Cruz

("Plaintiff") filed this action based on injuries Plaintiff alleges she

sustained in a motor vehicle collision. Attorney

Gerald L. Marcus ("Counsel") moves to be relieved as counsel for

Plaintiff. Plaintiff has not opposed the

motion.

TENTATIVE RULING:

Counsel's

motion to be relieved as counsel is GRANTED.

Moving

party to give notice.

DISCUSSION:

Motion to be relieved as counsel

Counsel has filed forms MC-051 and MC-052 and has

lodged with the Court a copy of the proposed order on form MC-053 as required. (Cal Rules of Court, rule 3.1362.) The basis for the motion is a breakdown in the

attorney-client relationship. This is a

valid reason for withdrawal. Accordingly, the motion is granted. Counsel should note that the order will become

effective upon the filing of proof of service of a signed copy of the order on

Plaintiff. Counsel will remain the

attorney of record until Counsel files with the Court proof of service of the

signed order. Counsel is to serve a copy

of the signed order (form MC-053) on Plaintiff within 10 days, and file proof

of service thereof.

Accordingly,

Counsel's motion to be relieved as counsel is GRANTED.

Moving

party to give notice.

IT

IS SO ORDERED.

Dated: September 1, 2026 \_\_\_\_\_

Rolf M. Treu

Judge of the Superior Court

Any party may submit on the tentative ruling by

contacting the courtroom via email at [email protected] by no later

than 4:00 p.m. the day before the hearing. All interested parties

must be copied on the email. It should be noted that if you submit

on a tentative ruling the court will still conduct a hearing if any party

appears. By submitting on the tentative you have, in essence, waived your right

to be present at the hearing, and you should be aware that the court may not

adopt the tentative, and may issue an order which modifies the tentative ruling

in whole or in part.